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California Assembly passes first-in-the-nation ban on chemicals in processed food

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Consumer Reports and the Environmental Working Group are halfway home in their strategy to ban harmful chemicals in food. They've focused on California where a slow but steady approach has landed a favorable 54-11 Assembly vote for AB 418 banning five harmful chemicals from candy, cereals, and other processed food.

Now the bill will be heard and voted on by the California Senate. If it becomes law in California, the ban will put pressure on other states and the federal Food and Drug Administration to react. FDA has had similar requests pending for many years.

As passed by the California Assembly, the bill would end the use of brominated vegetable oil, potassium bromate, propylparaben, Red Dye No. 3, and titanium dioxide in popular food products sold in the state. The chemicals are linked to serious health problems, such as a higher risk of cancer, nervous system damage, and hyperactivity.

The European Union already banned the five substances from use in food, with the narrow exception of Red No. 3 in candied cherries. Given the size of California's economy, AB. 418 would set an important precedent for improving the safety of many processed foods.

Following Europe's lead and protecting U.S. consumers is the right step, despite alarmist claims from opponents of the bill that it would end the sale of candy and other popular items in the state.

"Today's strong vote is a major step forward in our effort to protect children and families in California from dangerous and toxic chemicals in our food supply," said Assemblymember Jesse Gabriel, chair of the Assembly Committee on Privacy and Consumer Protection.

Gabriel is the prime sponsor of AB 418.

He added, "It's unacceptable that the U.S. is so far behind the rest of the world when it comes to banning these dangerous additives. We don't love our children any less than they do in Europe, and it's not too much to ask food and beverage manufacturers to switch to the safer alternative ingredients that they already use in Europe and so many other nations around the globe."

More than 10,000 chemicals are allowed for use in food sold in the U.S. Nearly 99 percent of those introduced since 2000 were approved by the food and chemical industry, not the Food and Drug Administration, the agency tasked with ensuring our food supply is safe.

"Californians deserve to know that the food they buy at the store doesn't increase their risk of toxic chemical exposure that can jeopardize their health," said Brian Ronholm, director of food policy at Consumer Reports.

"This bill helps close a troubling loophole in the FDA's oversight of food chemicals that has allowed them to remain in food products despite recent studies documenting the threat they pose to our health. We applaud the Assembly for passing this first-in-the-nation legislation and urge the Senate to follow suit," he said.

Most chemicals added to food and food packaging to enhance flavor or appearance, or to preserve freshness, are likely safe to eat. But the five food chemicals covered by A.B. 418 have been linked to a number of serious health concerns. They were banned by the EU after it launched a comprehensive re-evaluation of the safety of all food additives in 2008.

"What are these toxic chemicals doing in our food?" said Susan Little, EWG's senior advocate for California government affairs.

"We know they are harmful and that children are likely being exposed at a much higher rate than adults. It makes no sense that the same products food manufacturers sell in California are sold in the EU but without these toxic chemicals," Little said.

"Our kids need to be protected, too," she added. "These harmful additives have no place in California's food supply."

Children have lower tolerance levels than adults to chemical exposure, and their developing bodies make them especially vulnerable.

Consumers consistently rank food chemical concerns ahead of other food safety issues. But additives are not adequately regulated by the FDA, due in large part to the lack of financial support from Congress for food chemical review.

"For decades, the FDA has failed to keep us safe from toxic food chemicals," said Scott Faber, EWG senior vice president for government affairs. "The chemical companies keep exploiting a loophole that allows for food additives that have not been adequately reviewed for safety by the FDA. And the FDA consistently fails to reassess chemicals, even in light of new science. The food and confectioners industries know the review process at the FDA is broken."

"In the absence of federal leadership, it's up to states like California to keep us safe from dangerous chemicals in candy, cookies, and other foods our families enjoy," said Faber.

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